

III. ANALYSIS

Here, Plaintiff Bank filed this motion seeking to vacate the judgment and dismiss the case. Although it fails to cite a specific statute, the Court finds that based on the substance of the motion and evidence provided, the motion to set aside is based on Code of Civil Procedure section 473(b), based on the plaintiff counsel's mistake and inadvertence. Plaintiff counsel attests *after* that the default judgment entered on November 14, 2025 in the amount of \$8,536.79 against the defendant and in favor of the Bank, Plaintiff discovered that Defendant Little had previously filed for bankruptcy. (Declaration of Neal ¶ 2; Exh. A). Plaintiff's counsel attaches as Exhibit A and copy of the Pacer Bankruptcy Report as evidence. The bankruptcy report states a Chapter 7 bankruptcy case (case no. 25-51684) was filed by the defendant on October 30, 2025, which is approximately two weeks before a final entry of default was tended in this matter. (Exh. A). This motion was made within 120 days of the entry of default judgment, and the Court finds the motion timely.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Plaintiff's counsel asserts: "A Request for Dismissal is submitted with this declaration, for filing after judgment has been set aside and vacated." (Declaration of Neal ¶ 3). The Court notes that no such dismissal was attached to the declaration or Plaintiff's motion.

IV. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the motion to vacate the default judgment. The Court will prepare the formal Order.

The Court ORDERS the plaintiff to file a dismissal within fifteen (15) days of this hearing.

Calendar Line # 5

Case Name American Express National Bank vs Maryam Rafipour

Case No. 25CV465371

Motion to Set Aside Default Judgment

I. BACKGROUND

This credit card collections case stems from Plaintiff America Express National Bank ("Bank")'s Complaint filed on May 7, 2025 alleging two causes of action for breach of contract against Defendant Maryam Rafipour ("Rafipour"). On October 6, 2025, a basic entry of default was entered against the Defendant. On March 27, 2026, the Honorable Roberta Hayashi authorized a default judgment in favor of the Bank in the amount of \$53,198.27 against Defendant Rafipour, while her motion for relief of default and default judgment was filed.

On December 15, 2025, Defendant Rafipour filed a motion for relief to vacate the default and judgment. The motion was accompanied by a filed proof of service indicating mail service to defense counsel on that same day. The court notes that while the proof of service is file stamped for December 15, 2025, the process server did not execute the date.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Plaintiff Bank filed a non-opposition to the defendant's motion seeking to vacate the default judgment.

Additionally, Plaintiff Bank requested a dismissal of the second cause of action alleged in its Complaint based on verification that there was identify theft, but requests that the first cause of action remain pending further investigation and seeks a further case management conference approximately 180 days out.

The Court has carefully reviewed the moving papers, including: notice and memorandum of points and authorities in support of the defendant's motion to vacate the default judgment and attached Exhibits A-C (totaling 17 pages); proposed Answers (Exhibit C, at p. 14-17); Declaration of Maryam Rafipour (totaling 2 pages); Plaintiff's Non-Opposition (totaling 2 pages); proof of services; and the pleadings.

I. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

B. CODE OF CIVIL PROCEDURE 473.5

Code of Civil Procedure section 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."

C. CODE OF CIVIL PROCEDURE 473(D)

Under Code of Civil Procedure section 473(d), “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

III. ANALYSIS

Here, the defendant in pro per seeks to vacate the judgment under Code of Civil Procedure section 473(c)(2) and states the grounds as clerical mistakes in the judgment. (Motion, p. 1-3). This section is miscited and refers to section 473(d). However, the Court notes that there is no clerical mistake, thus defense cite the wrong section of the code, and seeks to set aside default. However, based on the substance of the motion, the Court notes that Code of Civil Procedure section 473.5 would apply, as the defendant argues that service was not properly effected. (*Id.*, at p. 2). Defendant Rafipour avers that the substituted service does not match her or anyone in her household who could accept service. (*Id.*).

“[A]ctual notice in section 473.5 means genuine knowledge of the party litigant. . . [A]ctual knowledge has been strictly construed, with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits.” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547 [Citations Omitted]). “[A] party can make a motion showing a lack of actual notice not caused by avoidance of service or inexcusable neglect . . .” (*Trackman v. Kenney* (2010) 187 Cal. App. 4th 175, 180). “[I]t does not require a showing that plaintiff did anything improper...[T]he defaulting defendant simply asserts that he or she did not have actual notice’.” (*Id.*).

The Court finds that the motion is timely as the motion to vacate was filed on December 15, 2025, a little after two months after the initial entry of default pm October 6, 2025, and before Judge Hayashi then granted default judgment on March 27, 2026, after the defendant already filed her motion.

Based on the unopposed motion to vacate the default judgment, timeliness, and the Plaintiff’s non-opposition and request to dismiss the second cause of action, the Court finds there is good cause to vacate the entry of default and default judgment.

IV. CONCLUSION

Based on the foregoing, the Plaintiff’s non-opposition to the defendant’s motion to vacate the default judgment, the Court GRANTS the motion. IT IS SO ORDERED that the entry of default and default judgment is hereby VACATED.

Defendant is ORDERED to file her Answer within thirty (30) days of this hearing.

The Plaintiff’s request to dismiss the second cause of action without prejudice is GRANTED. The Court will prepare the formal Order.

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Calendar Line # 6
Case Name Rosette Simon et al vs EAH Housing Inc. et al
Case No. 26CV484388
Demurrer
<u>I. BACKGROUND</u> On July 8, 2026, Defendant EAH Housing Inc. (“EAH”), filed a demurrer to Plaintiffs Rosette Simon and Shaquille Ceesay’s First Amended Complaint (“FAC”). The demurrer was accompanied by a proof of electronic mail and mail service upon the plaintiffs on July 8, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). <u>III. ANALYSIS</u> Here, Defendant EAH avers that the FAC as currently drafted, does not state facts sufficient to allege causes of actions against EAH. Defense has attempted to meet-and-confer with the plaintiffs regarding a possible amended complaint. Per defense the plaintiffs have refused to amend the FACT. (Declaration of Sera ¶¶ 4-6, Exhibit B). THE FAC filed on May 8, 2026 is handwritten and alleges negligence against the defendant pertaining to claims, including, but not limited to a breach of implied warranty of habitability, harassment and retaliation, failure to return rental deposit, and seeks \$15,00,000.00 in damages. Applying section 431.10, the Court considers that all material facts are properly pleaded, but not contentions, deductions, or conclusion of the law. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>IV. CONCLUSION</u> Based on the foregoing, the unopposed demurrer the Court SUSTAINS Defendant EAH’s demurrer with twenty (20) day leave to amend from the date of this hearing. The Court will prepare the formal Order.

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